

Smt. Jasmeen Kaur Vig vs Manpreet Singh Vig on 20 December, 2023

Author: Maninder S. Bhatti

Bench: Maninder S. Bhatti

1
IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SHRI JUSTICE MANINDER S. BHATTI
ON THE 20th OF DECEMBER, 2023
MISC. CIVIL CASE No. 2501 of 2023

BETWEEN: -

SMT. JASMEEN KAUR VIG W/O SHRI MANPREET SINGH
VIG, AGED ABOUT 30 YEARS, OCCUPATION:
HOUSEWIFE R/O C/O MPHER SMT. RAJINDRE KAUR
KALSI W/O SHRI BALVINDER SINGH LAKSHI VISHNUPUR
NX BHAWARKAUN AB ROAD INDORE TEHSIL AND
DISTRICT INDORE (MADHYA PRADESH)

(BY SHRI D.S. BAGHEL - ADVOCATE)

AND

MANPREET SINGH VIG S/O SHRI SATWANT SINGH VIG,
AGED ABOUT 32 YEARS, R/O WARD NO. 9 MAIN ROAD
OPPOSITE JOHNSONS HOTEL PARASIA TEHSIL
PARASIA DISTRICT CHHINDWARA (MADHYA
PRADESH)

(BY SHRI VIBHAY SOLANKI - ADVOCATE)

This application coming on for admission this day, the
the following:

ORDER

This is an application filed by the applicant/wife under Section 24 of CPC seeking transfer of the case filed by the respondent/husband vide RCSHM/8/2023 under Section 11 of the Hindu Marriage Act seeking annulment of the marriage, from the Court of Additional District Judge, Parasia, District Chhindwara to the Family Court at Indore.

2. The counsel for the applicant/wife contends that the marriage of the applicant was solemnized with the respondent on 15.2.2022. After marriage, the applicant/wife was subjected to cruelty and

the said instances of cruelty gave birth to various litigation including a case under Sections 498-A of IPC as well as an application under Section 125 of Cr.P.C. before the competent Court at Indore and, therefore, when already two cases are pending at Indore, it would be expedient that the case filed by the respondent/husband under Section 11 of the Hindu Marriage Act be transferred to the Family Court at Indore. It is further contended that the distance between two places is approximately 500 Kms and the applicant/wife has to look after her ailing mother and there is no male member in the family to accompany the applicant/wife on the scheduled dates of hearing at Parasia, District Chhindwara. Therefore, Case No. RCSHM/8/2023 be transferred from the Court of Additional District Judge, Parasia, District Chhindwara to the Family Court at Indore.

3. Per contra, the counsel for the respondent/husband contends that the applicant/wife in Para (b) of the grounds of the present application has submitted that the application under Section 11 of Hindu Marriage Act has been filed on the ground that the present applicant has suffered from bipolar disorder. It is further submitted that the applicant/wife can always enter appearance through Video Conferencing and in support of this contention, the counsel for the respondent has placed reliance on the order passed by this Court in MCC No. 95 of 2002 (Smt. Megha Vs. Amit) decided on 16.2.2023.

4. Heard the submissions advanced on behalf of the parties and perused the record.

5. On perusal of the record, it reflects that the respondent/husband approached the Family Court by way of filing an application under Section 11 of the Hindu Marriage Act seeking annulment of marriage on the ground that the applicant/wife is suffering from the ailments, which were detailed in Paragraphs 9 and 10 of the application under Section 11 of the Hindu Marriage Act. The said stand of the respondent is required to be considered by the concerned Court after sifting the evidence, which is to be adduced by the parties.

6. Taking into the consideration the grounds as narrated in Paragraphs 9 and 10 of the application under Section 11 of the Hindu Marriage Act before the Court at Parasia as well as the grounds as incorporated by the applicant/wife in the present application, the factum of inconvenience as well as hardship to the applicant/wife cannot be ruled out. Therefore, taking into consideration, the law laid down by the Apex Court in the case of NCV Aishwarya Vs. A.s. Saravan Kartik - 2002 SCC OnLine SC 1199 and Rajni Kishore Pardeshi Vs. Kishore Babulal Pardeshi - (2005) 12 SCC 237, it would be expedient in the interest of justice to transfer the case filed by the respondent/husband under Section 11 of the Hindu Marriage Act before Additional District Judge, Parasia, District Chhindwara to the Family Court at Indore.

7. Resultantly, the application is allowed. Case No. RCSHM/8/2023 filed by the respondent/husband under Section 11 of the Hindu Marriage Act before the Court of Additional District Judge, Parasia, District Chhindwara be transferred to the Family Court at Indore.

8. The parties are directed to appear before the Family Court at Indore on 23.1.2024.

9. If the respondent/husband is unable to enter appearance on any particular date before the Family Court at Indore, he shall be at liberty to move an appropriate application in that regard to enter appearance through Video Conferencing and the same shall be dealt with by the concerned Court in accordance with law.

(MANINDER S. BHATTI) JUDGE PB